

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404703	ORTIZ vs R-RIVAS TRUCKING INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

The hearing on the motion to strike is vacated.

Analysis:

The moving party filed a motion to strike without first complying with its obligations to meet and confer with the plaintiff. (CCP sec. 435.5.) At the initial hearing on 6-24-26, the Court continued the hearing to 7-29-26, ordered the parties to meet and confer as the statute requires, and ordered the parties to file an answer, a stipulation for leave to amend, or a declaration describing the issues that were not resolved in their meeting. None of those alternative documents have been filed. Accordingly, the hearing on the motion is vacated.

If the defendant still seeks to have its motion heard, it shall comply with its obligations under section 435.5 and re-calendar the hearing.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The Court has no tentative ruling. However, the plaintiff's counsel, Marisol Gastelum, shall appear on August 19, 2026, at 8:30 A.M., in Department 5 of this Court and show cause, if any, why sanctions of up to \$1,500 should not be imposed against her for her refusal to meet and confer with defense counsel, as required by CCP section 430.41, subdivision (a)(2). The citee shall comply with RSC Local Rule 1116.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507313	GALVAN vs DORANTES	MOTION FOR CHANGE OF VENUE

Tentative Ruling:

The defendant's request for judicial notice is granted. The plaintiff's request for judicial notice is denied.

The defendant's motion for change of venue is granted. The action is ordered transferred to San Diego County. The plaintiff shall bear the expense of the transfer fees.

Analysis:

The plaintiff's request for judicial notice is denied because it is unnecessary once the defendant's request is granted. As to the plaintiff's request for judicial notice of the complaint filed in this case, it is unnecessary when the Court is asked to review documents previously filed in the same case.

The evidence presented by the defendant shows that San Diego County is the proper venue for each of the three contract-based causes of action.

In transitory actions such as this one, the proper venue is the county where the defendants or some of them reside at the commencement of the action, except as otherwise provided by law. (C.C.P. § 395(a).) It is undisputed that Defendant resides in San Diego County. (Complaint, ¶ 2; E. Dorantes Decl., ¶ 2.) Because Defendant has made a proper showing of nonresidence in Riverside County, the burden shifts to Plaintiff to show that the case clearly comes within one of the statutory exceptions to the general rule that actions are triable in the place of the defendant's residence. (*California State Parks Foundation v. Superior Court* (2007) 150 Cal.App.4th 826, 833.) Plaintiff has failed to do so here. Rather, Plaintiff solely relies on dicta in the First Action's Final Ruling, which did not reach the merits of the proper venue for Plaintiff's contract-based actions.

Similarly, although the unverified Complaint alleges that Plaintiff and Decedent entered into the agreement with Defendant on September 3, 2020, in Riverside County (Complaint, ¶ 8), the declarations of Defendant and Decedent's daughter, Christina Dorantes ("Christina"), state that Decedent and Defendant entered into the agreement on that date in San Diego County. Specifically, Defendant and Christina attest that on September 1, 2020, Decedent moved from Mexico to Defendant's residence in San Diego, California, after separating from Plaintiff, who they allege was mentally and physical abusive. (E. Dorantes Decl., ¶ 5; C. Dorantes Decl., ¶ 3.) Defendant and Christina further attest that on September 3, 2020, while Plaintiff was in Mexico, they witnessed Decedent giving Defendant 5 money orders totaling \$50,000.00 and asking Defendant to hold the money for her living expenses. (E. Dorantes Decl., ¶ 6-7; C. Dorantes Decl., ¶ 5.) The money orders attached to the Complaint show that they were issued on September 3, 2020, in Oceanside, which is located in San Diego County. (Complaint, Exh. 1.) Accordingly, the evidence shows that Defendant and Decedent entered into the agreement in San Diego County, where Defendant resides.

Defendant disputes that any performance under the agreement was meant to be, or occurred, in Riverside County. (E. Dorantes Decl., ¶ 8). The Complaint's exhibits show that on August 30, 2021, Defendant issued two checks for \$5,000.00 and \$2,000.00 to Decedent. (Complaint, Exh. 4.) Defendant's exhibits show that Decedent's address was

listed as Oceanside on the date that Defendant returned the payments to her. (E. Dorantes Decl., Exhs. B and C.) As such, Defendant has made a sufficient showing that venue is proper in San Diego County because that is where Defendant performed the terms of the agreement, i.e., returned the cash to Decedent.